

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #10	CCRB Case #: 201705353	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/01/2017 7:42 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 1/1/2019		Precinct: 44
Date/Time CV Reported Sun, 07/02/2017 1:13 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 07/02/2017 1:13 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			044 PCT
2. POF Crystal Williams	19425	960076	044 PCT
3. POM Nestor Lozano	18038	958843	044 PCT
4. POM Uriel Lames	20159	958788	044 PCT
5. POF Mary Cunningham	17931	954679	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Onyx Salvador	22056	959962	044 PCT
2. POM Ariel Gonzalez	21041	958646	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Uriel Lames	Force: At § 87(2)(b) in the Bronx, Police Officer Uriel Lames used physical force against § 87(2)(b)	A . Exonerated
B . Officers	Force: At § 87(2)(b) officers used physical force against § 87(2)(b)	B . Exonerated
C . POM Nestor Lozano	Abuse: At § 87(2)(b) in the Bronx, Police Officer Nestor Lozano entered and searched § 87(2)(b)	C . Exonerated
D . POF Crystal Williams	Abuse: At § 87(2)(b) in the Bronx, Police Officer Crystal Williams entered and searched Apartment 10D.	D . Exonerated
E . POF Mary Cunningham	Discourtesy: Inside an ambulance, Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On July 2, 2017, § 87(2)(b) filed this complaint via the CCRB's call processing system on behalf of her brother, § 87(2)(b).

On July 1, 2017, officers from the 44th Precinct responded to a 911 call, made by § 87(2)(b) regarding § 87(2)(b) at § 87(2)(b), in the Bronx. § 87(2)(b) and § 87(2)(b) are siblings. Upon police arrival, § 87(2)(b) was outside the apartment, in the hallway, and § 87(2)(b) opened the door and pushed PO Nestor Lozano of the 44th Precinct. § 87(2)(b) was subsequently taken to the ground by PO Uriel Lames of the 44th Precinct and other officers (**Allegation A** and **Allegation B**). PO Lozano entered the apartment and made contact with § 87(2)(b) and escorted him out of the apartment. PO Lozano and PO Crystal Williams of the 44th Precinct then entered the apartment and searched it for any remaining occupants (**Allegation C** and **Allegation D**). § 87(2)(b) was arrested for § 87(2)(b), and § 87(2)(b) was transported to § 87(2)(b) by EMS.

After arriving at the stationhouse, § 87(2)(b) requested medical treatment for injuries sustained during his takedown. § 87(2)(b) was taken by EMTs § 87(2)(b) and § 87(2)(b) along with PO Mary Cunningham, to § 87(2)(b) in the Bronx. Inside the ambulance, PO Cunningham allegedly told § 87(2)(b) "I bet you'd rather be at home, playing with your girlfriend's titties," and "I bet you wanna be home with your girlfriend, getting head" (**Allegation E**).

This case exceeded 90 days due to the delayed receipt of NYPD documents.

Video footage from the lobby and elevator of the building was obtained; however, there was no relevant footage capturing the incident.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation due to § 87(2)(b)'s arrest (Board Review 22).
- As of October 12, 2017, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the Office of the New York City Comptroller (Board Review 21).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 19).
- This is § 87(2)(b)'s first CCRB complaint (Board Review 20).
- PO Lames has been a member-of-service for two years and this is the first CCRB complaint filed against him.

- PO Lozano has been a member-of service for two years and this is the first CCRB complaint filed against him.
- PO Williams has been a member-of-service for two years and this is the first CCRB complaint filed against her.
- PO Cunningham has been a member-of-service for four years and this is the first CCRB complaint filed against her. Since this complaint, another CCRB complaint, 201707288, was filed against her.

Findings and Recommendations

Explanation of Subject Officer Identification

Between his phone statement and in-person statement, § 87(2)(b) vacillated between describing five officers as taking him to the ground, and then stating that it was only three.

§ 87(2)(b) was unable to attribute specific actions to specific officers (Board Review 02).

Through officer testimonies and NYPD documentation, the investigation found that PO Lames was involved in § 87(2)(b)'s takedown. PO Salvador stated that PO Gonzalez was also involved, but PO Gonzalez denied doing this. Neither PO Williams nor PO Lozano could attribute the takedown to specific officers. PO Lames did not recall whether additional officers were involved in the takedown, aside from himself (Board Review 08) (Board Review 09)(Board Review 07)(Board Review 05)(Board Review 06).

TRI reports and the ISAR generated regarding this incident indicated that PO Lames conducted the forcible takedown, PO Salvador and PO Gonzalez handcuffed § 87(2)(b) and neither PO Lozano nor PO Williams used any force. Due to conflicting civilian and officer testimonies, as well as supporting documentation, the investigation was unable to determine which, if any, additional officers, aside from PO Lames, conducted § 87(2)(b)'s forcible takedown (Board Review 10)(Board Review 11)(Board Review 12)(Board Review 13)(Board Review 14)(Board Review 27). § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Allegation A -Force: At § 87(2)(b) in the Bronx, Police Officer Uriel Lames used physical force against § 87(2)(b)

Allegation B -Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)

Allegation C –Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Nestor Lozano entered and searched § 87(2)(b):

Allegation D –Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Crystal Williams entered and searched § 87(2)(b)

The investigation has established that, after § 87(2)(b) opened the front door of § 87(2)(b), he made physical contact with PO Lozano. Pursuant to this contact, § 87(2)(b)

§ 87(2)(b) was forcibly taken to the ground by officers, and PO Williams and PO Lozano entered the apartment.

The NYPD communications CD contains § 87(2)(b)'s 911 call as well as the related radio run. § 87(2)(b) called 911 to report that § 87(2)(b) was off his medication. He provided the location, a physical description, and that when he was off his medication, § 87(2)(b) was aggressive. § 87(2)(b) confirmed that he was not currently present at the apartment with § 87(2)(b) and that there were no known weapons or injuries in the apartment. The dispatcher put over the radio that there was a violent EDP who was off his medication with no weapons or injuries at § 87(2)(b). The EDP was a Hispanic male with a medium build, and the 911 caller was § 87(2)(b) (Board Review 01) (Board Review 23).

§ 87(2)(b) testified that he was not aware of the 911 call, and was inside his apartment with § 87(2)(b) when he heard knocking on the front door. He placed his dogs in the bathroom and then he opened the door and saw officers standing outside. § 87(2)(b) remained in the living room. § 87(2)(b) denied that officers said anything to him before they took steps toward him. He raised his right arm and held it horizontally in front of him. During this action, § 87(2)(b) may have brushed against PO Lozano's chest, but he was not sure. § 87(2)(b) was grabbed by PO Lames, and PO Lames attempted to take § 87(2)(b) to the ground, but § 87(2)(b) remained tense and upright. § 87(2)(b) was then successfully taken to the ground by PO Lames and other officers after he released his tenseness and allowed officers to pull him to the ground, landing on his right side. § 87(2)(b) rolled himself onto his stomach, and was then handcuffed.

§ 87(2)(b) testified that approximately 10 officers ran into the apartment, and escorted § 87(2)(b) out of the apartment. When § 87(2)(b) exited the apartment, their dogs were no longer in the bathroom, which was where he left them. Aside from this detail, there was no indication that officers went anywhere else in the apartment aside from the living room.

§ 87(2)(b) testified that, prior to the incident, he had a small cut on his right arm. After being taken to the ground, § 87(2)(b)'s cut became a large burn/scrape, and he sustained swelling to his cheek. He noticed his arm injury was bleeding after he was transported to the stationhouse, so he requested medical treatment and was transported to § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) initially testified that she did not know why officers were present, but later stated she knew that § 87(2)(b) had called 911. § 87(2)(b) confirmed that § 87(2)(b) had not been taking his medication and has drug-induced psychosis. § 87(2)(b) had an episode two to three days prior. When officers arrived and § 87(2)(b) was in the hallway, she was throwing out a chair that § 87(2)(b) had broken during his episode. § 87(2)(b) described § 87(2)(b) as being "body slammed," but was unable to describe what actions officers took due to her obstructed view. § 87(2)(b) denied observing § 87(2)(b) use force against any officers. § 87(2)(b) did

not observe officers enter the apartment; however, after the incident, she noticed a police officer's shoeprint in her dog's feces inside the apartment.

§ 87(2)(b) was not cooperative with the investigation; however, during a phone statement, he stated that he was inside the apartment when officers knocked on the door. After § 87(2)(b) opened the door, § 87(2)(b) heard officers ask him questions, but he did not know what. § 87(2)(b) could not see what was happening from where he was seated in the living room, but he heard a few "slams," and saw § 87(2)(b) lying on the floor. § 87(2)(b) approached the officers, was placed into handcuffs, and was transported to § 87(2)(b) by EMS (Board Review 04).

PO Lozano testified that, after exiting the stairwell, he saw § 87(2)(b) holding a broken chair. He knocked on the door of the apartment and § 87(2)(b) opened it. After he informed § 87(2)(b) of the 911 call, § 87(2)(b) stepped in front of the door and held onto the doorknob. § 87(2)(b) refused to answer any questions about whether anyone else was inside the apartment or was injured. § 87(2)(b) stated, "No one's coming in here," and used his right arm to push PO Lozano backward. PO Lozano grabbed § 87(2)(b)'s arm and, using his momentum, pulled § 87(2)(b) further into the hallway. PO Lozano let go of him and lost sight of § 87(2)(b).

When PO Lozano pulled § 87(2)(b) into the hallway, PO Lozano saw § 87(2)(b) standing inside the dark apartment hallway. PO Lozano entered the apartment immediately after § 87(2)(b) pushed him. PO Lozano entered the apartment to ensure that no one was injured, as the radio run paired with the broken chair held by § 87(2)(b) and § 87(2)(b)'s combative demeanor, led PO Lozano to believe that someone may need assistance. PO Lozano approached § 87(2)(b) and informed him of the 911 call, and asked him if anyone was inside the apartment or injured, but § 87(2)(b) was unresponsive. PO Lozano escorted § 87(2)(b) out of the apartment in handcuffs. In the hallway, PO Lozano again asked how many people were inside the apartment and if anyone was hurt, but no one responded. PO Lozano and PO Williams entered the apartment with the intent to make sure no one was inside and injured. PO Lozano opened doors and looked under beds, solely looking for people. When they did not find anyone else, PO Lozano and PO Williams exited the apartment.

PO Lames testified that, after § 87(2)(b) opened the door, he and PO Lozano spoke, but PO Lames did not recall what they spoke about. § 87(2)(b) placed his arm on PO Lozano's upper torso and pushed him backward. PO Lames, on his own accord, grabbed § 87(2)(b) (he did not recall where), and in a "controlled manner," took him to the floor. PO Lames described this "controlled, forcible takedown" as a takedown that did not involve throwing § 87(2)(b) but holding onto him and pulling him toward the ground. PO Lames conducted the takedown immediately after § 87(2)(b) pushed PO Lozano for the safety of himself, § 87(2)(b) as well as other officers. PO Lames did not recall whether he observed officers enter the apartment at any time.

PO Williams testified that she and PO Lozano knocked on the door and § 87(2)(b) opened the door. § 87(2)(b) was informed of the 911 call but was unresponsive to

questioning, and he stepped outside his apartment, into the hallway. § 87(2)(b) continued to be unresponsive to the officers' questioning, told the officers they were not going to enter the apartment, and pushed PO Lozano in the torso. PO Williams then observed § 87(2)(b) get pulled toward her left, out of her sight. PO Williams heard PO Lames state, "It's against the law to assault officers," and then saw § 87(2)(b) on the ground. PO Williams did not see how § 87(2)(b) ended up on the ground. After § 87(2)(b) was out of the way, PO Williams saw § 87(2)(b) inside the apartment. § 87(2)(b) ultimately exited the apartment on his own accord, after verbal orders to do so by PO Williams and PO Lozano. PO Williams and PO Lozano entered the apartment to see if anyone in distress was inside. PO Williams suspected someone may be inside due to the 911 call and obtaining no additional information from § 87(2)(b) or § 87(2)(b). The officers opened doors but did not enter rooms and were only looking for people. After they confirmed that no one else was inside the apartment, PO Williams and PO Lozano exited.

PO Salvador testified that after he exited the elevator, he observed § 87(2)(b) holding a broken chair. PO Lozano knocked on the apartment door and § 87(2)(b) opened the apartment door. PO Lozano informed him of the contents of the radio run. PO Lozano informed § 87(2)(b) that he needed to enter the apartment to render aid to the EDP. After PO Lozano repeated that they needed to address the 911 call multiple times, § 87(2)(b) exited the apartment, and stepped in front of the door, placing his body directly in front of the door's opening. Behind him, inside the apartment, PO Salvador saw § 87(2)(b) staring blankly ahead. § 87(2)(b) spoke at an elevated volume and with a hostile tone. PO Lozano tried to step forward, but § 87(2)(b) shoved PO Lozano with his forearm in his torso. PO Salvador testified that PO Gonzalez and PO Lames each grabbed § 87(2)(b) and he began to flail his arms. He was then taken to the ground and PO Salvador assisted with handcuffing. PO Lozano entered the apartment. PO Salvador was unable to articulate exactly when this happened, and was unable to see inside the apartment from where he was positioned. An unknown amount of time later, PO Lozano exited the apartment with § 87(2)(b).

PO Gonzalez testified that an officer knocked on the front door and § 87(2)(b) opened the door and immediately stepped outside, closing the door behind him. PO Lozano informed § 87(2)(b) of the 911 call, and § 87(2)(b) pushed PO Lozano in the stomach with his arm, causing PO Lozano to take a few steps backward. PO Lames "conducted a forcible takedown," which PO Gonzalez described as PO Lames using one of § 87(2)(b)'s arms to bring § 87(2)(b) down in a "controlled manner," but PO Gonzalez was unable to describe what specific actions PO Lames took. PO Gonzalez testified that, while § 87(2)(b) was on the ground, PO Williams and PO Lozano entered the apartment. A couple minutes later, PO Williams and PO Lozano exited the apartment with § 87(2)(b). From his vantage point, PO Gonzalez could not see what was happening inside the apartment.

§ 87(2)(g)

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person. NYPD Patrol Guide, Procedure 221-01 (Board Review 15). Officers may enter a home

without a warrant to render emergency assistance to an injured occupant or to protect an occupant from immediate injury. Such an emergency situation must possess three factors. First, an officer must possess "reasonable grounds" to believe that there is an emergency at hand. Second, the entry must not be primarily motivated by a desire to make an arrest or obtain evidence. Third, there must be reasonable basis to associate the emergency with the location being entered. *People v. Musto*, 106 A.D3d (App. Term, 3d Dept., 2013) (Board Review 16).

§ 87(2)(g)

. It is therefore recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegation C** and **Allegation D** be closed as **exonerated**.

Allegation E –Discourtesy: Inside an ambulance, Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that, while he was in an ambulance en route to § 87(2)(b), PO Cunningham stated, “I bet you wish you were at home, playing with your girlfriend’s titties,” and “I bet you wanna be home with your girlfriend getting head.” § 87(2)(b) also testified that PO Cunningham was showing him pictures of her dogs.

EMT § 87(2)(b) did not recall this incident. EMT § 87(2)(b) remembered this incident, and acknowledged that PO Cunningham showed pictures of her dogs, but denied hearing PO Cunningham make the aforementioned statements (Board Review 24) (Board Review 25).

PO Cunningham acknowledged showing an EMT photos of her dogs, but denied doing so to § 87(2)(b) PO Cunningham denied making the aforementioned statements (Board Review 26).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Squad: 10

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date